

ACMEDEALS

Mergers & Acquisitions Advisory

Mutual Non-Disclosure Agreement

Confidential — Project Alpine

WHEREAS, the parties identified below (each a "Party" and collectively the "Parties") wish to explore a potential business transaction (the "Transaction"); and WHEREAS, in connection with such evaluation, each Party may disclose to the other certain proprietary and confidential information; NOW, THEREFORE, in consideration of the mutual covenants contained herein and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the Parties agree as follows:

ARTICLE I — PARTIES

Receiving Party

Title

Company/Firm

Disclosing Party

Title

Company/Firm

ARTICLE II — DEAL INFORMATION

Deal Name

Effective Date

ARTICLE III — CONFIDENTIAL INFORMATION

For purposes of this Agreement, "Confidential Information" means any and all non-public information, whether written, oral, electronic, or visual, disclosed by either Party to the other in connection with the Transaction, including but not limited to: financial statements, projections, and forecasts; business plans, strategies, and operational data; customer and supplier lists; intellectual property, trade secrets, and proprietary technology; term sheets, valuation analyses, and deal structures; and any other information designated as confidential or that a reasonable person would understand to be confidential given the nature of the information and circumstances of disclosure.

ARTICLE IV — OBLIGATIONS OF THE RECEIVING PARTY

Each Party receiving Confidential Information agrees to:

- (a) Hold all Confidential Information in strict confidence and not disclose it to any third party without the prior written consent of the Disclosing Party.
- (b) Use the Confidential Information solely for the purpose of evaluating the Transaction and for no other purpose whatsoever.

- (c) Limit access to Confidential Information to those employees, advisors, and representatives who have a legitimate need to know and who are bound by confidentiality obligations no less restrictive than those set forth herein.
- (d) Promptly notify the Disclosing Party in writing of any unauthorized disclosure, misappropriation, or use of Confidential Information upon becoming aware of the same.

ARTICLE V — TERM AND DURATION

This Agreement shall remain in effect for a period of two (2) years from the Effective Date. The obligations of confidentiality and non-use shall survive the expiration or termination of this Agreement and continue for as long as the Confidential Information retains its confidential nature.

ARTICLE VI — REMEDIES

Each Party acknowledges that any breach of this Agreement may cause irreparable harm to the Disclosing Party for which monetary damages would be inadequate. Accordingly, either Party shall be entitled to seek equitable relief, including injunction and specific performance, in addition to all other remedies available at law or in equity, without the requirement of posting a bond or other security.

This Agreement is governed by the laws of the State of Delaware.

Receiving Party Signature

Date

Disclosing Party Signature

Date